

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case Nos. 2012-6495

CEASE AND DESIST ORDER

IN THE MATTER OF THE UNAUTHORIZED AND UNLAWFUL PRACTICE OF
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO BY MATTHEW A.
CAPRANELLI, LPC 5064 (EXPIRED)

Respondent.

The State Board of Licensed Professional Counselor Examiners ("Board"), having reviewed the complaint and all other relevant information in this matter at the emergency meeting held on November 16, 2012, HEREBY FINDS:

1. The Board has jurisdiction over Matthew A. Capranelli, Respondent, and the subject matter herein, and there exists credible evidence that Respondent has acted without the required license, in violation of §§ 12-43-216 and 12-43-604(1), C.R.S.
2. Respondent has been licensed to practice professional counseling in the State of Colorado, which license expired August 31, 2011.
3. After August 31, 2011, Respondent continued to practice professional counseling/psychotherapy in the State of Colorado and has held himself out as a licensed professional counselor.
4. Respondent's conduct constitutes unlawful activity in violation of §§ 12-43-216 and 12-43-604(1), C.R.S.
5. Based on the information contained in the complaint and all other available information in this matter, reasonable grounds and credible evidence exist to believe, and the Board finds, that Respondent acted in violation of §§ 12-43-216 and 12-43-604(1), C.R.S.
6. Based on the information contained in the complaint and all other available information, reasonable grounds and credible evidence exist to believe, and the Board finds, that the Respondent is acting in a manner that is an imminent threat to the health and safety of the public pursuant to § 12-43-223(4)(a), C.R.S.

THEREFORE, IT IS HEREBY ORDERED, pursuant to § 12-43-223(4)(a), C.R.S., that Respondent immediately CEASE AND DESIST from engaging in unlawful activities in violation of the Mental Health Practice Act, Title 12, Part 43.

Within ten days after service of this Cease and Desist Order, Respondent may request a hearing on whether such acts or practices in violation of Article 43 of Title 12, C.R.S. have occurred. Such hearing shall be conducted pursuant to §§ 24-4-104 and 24-4-105, C.R.S.

The Board authorized the undersigned representative to sign this Cease and Desist Order on its behalf.

DATED this 16th day of November, 2012.

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

BY: 
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